Policies and Procedures Manual

- CAFÉ ON THE -
HILLTOP

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1. Introduction

The CAFE ON THE HILLTOP Policies and Procedures Manual has been developed in the context of the laws and regulations of the countries in which we operate. CAFE ON THE HILLTOP uses guidelines to administer its policies and procedures to staff for the purposes of management. Although Employees and Officers are not expected to know the details of each of these laws, rules, and regulations, it is important to know enough to determine when to seek advice from Supervisors, Managers, or other appropriate personnel. Obeying the law, both in letter and in spirit, is the foundation on which CAFE ON THE HILLTOP's ethical standards are built. CAFE ON THE HILLTOP strives to keep Human Resource's policies current and relevant. Therefore, from time to time it will be necessary to amend the Policies and Procedures Manual. Any suggestions, recommendations, or feedback on the policies and procedures specified in this Manual are welcome. Note that these policies and procedures apply to all Employees.

2. Personal Conduct

2.1 General Policy on Personal Conduct

CAFE ON THE HILLTOP expects its Employees to maintain a high standard of conduct and work performance to make sure the business maintains a good reputation with customers and clients. Good personal conduct contributes to a good work environment for all. This involves all Employees to:

- Observe all policies and procedures.
- Treat colleagues with courtesy and respect.
- Treat customers and clients in a professional manner.
- Work safely at all times.

2.2 Code of Conduct

CAFE ON THE HILLTOP commits to encouraging a safe, supportive, and productive work environment. This can be successfully achieved when there is cooperation and compliance to

suitable standards of conduct. The following are acts which the Company considers unacceptable. Any Employee found engaging in these acts will be subject to disciplinary action which may include reprimand, warning, suspension or dismissal:

- ✓ Wilfully damaging, destroying or stealing property belonging to fellow Employees or the Company.
- ✓ Fighting or engaging in rough, boisterous, or disorderly conduct.
- ✓ Refusing to follow or failing to carry out any reasonable instruction from a Supervisor.
- ✓ Ignoring work duties or wasting time during working hours.
- ✓ Coming to work under the influence of alcohol or any illicit drug.
- ✓ Bringing alcoholic beverages or illicit drugs onto Company property.
- ✓ Intentionally giving false or misleading information to obtain a Leave of Absence.
- ✓ Using threatening or abusive language towards a fellow Employee.
- ✓ Smoking contrary to established policy or violating any Fire Protection Regulation.
- ✓ Wilfully or habitually violating Health and Safety Regulations.
- ✓ Failing to wear clothing conforming to standards set by the Company.
- ✓ Arriving to work late or taking unexcused absences.
- ✓ Not taking proper care of, neglecting or abusing CAFE ON THE HILLTOP's equipment or tools.
- ✓ Using equipment in an unauthorised manner.
- ✓ Being in possession of firearms or weapons of any kind whilst on CAFE ON THE HILLTOP's premises.

2.3 Dress Code Policy

As a condition of employment, CAFE ON THE HILLTOP reserves the right to request an Employee to dress to an appropriate standard at all times. All work attire should be clean, neat, and look professional.

2.4 Uniform Policy

CAFE ON THE HILLTOP requires all hospitality staff to wear the appropriate uniform throughout their shift. Trainees or Trial Staff are also required to wear the appropriate uniform. However, they will **not** be provided with the CAFE ON THE HILLTOP uniform unless the required details have been supplied on the Application Form or Employee Personal Details Form.

2.5 Provided Uniforms

Front of House staff will be provided with an appropriate quantity of uniforms upon commencement of employment with CAFE ON THE HILLTOP, however the ownership of the uniforms shall always remain with the Employer even where replacements for lost or stolen uniforms were purchased at the Employee's expense.

2.6 Costs Associated with Uniforms

The number of gratis uniforms supplied for each new Employee must be specified in the Employment Agreement. This is to be determined by the Manager/Executive Chef according to the estimated number of shifts to be worked:

1 shift per week	→	1 shirt, 1 apron, 1 cap/hat
2 shifts per week	→	1 shirt, 1 apron, 1 cap/hat
3 shifts per week	→	2 shirts, 2 aprons, 1 cap/hat
4 shifts per week	→	2 shirts, 2 aprons, 1 cap/hat
5 shifts per week	→	3 shirts, 2 aprons, 2 caps/hats

Due to the high costs involved in purchasing the embroidered uniforms, replacement shirts, caps, and aprons must be paid for by the Employee at their individual item cost. In the event of replacement uniforms being required for general wear and tear, after 12 months of continual service such uniforms shall be provided free of charge.

Upon terminating his/her employment with CAFE ON THE HILLTOP, the Employee must return the uniform(s) in his/her possession **in good condition** before preparation of final pay. Failure to do so will result in the cost of the uniform(s) being deducted from that final pay.

2.7 Uniform Allowance

CAFE ON THE HILLTOP reserves the right to request an Employee to maintain the nominated uniform by washing and ironing it after each shift. In consideration of this, the Employee shall be paid a Uniform Allowance of $1.20 per shift.

2.8 Personal Communications Policy

It is expected that communication with customers, other CAFE ON THE HILLTOP Employees, suppliers, and the public, will always be reflective of CAFE ON THE HILLTOP's commitment to service and professionalism. This extends to the use of Facebook and other social networking websites and public domains. Any unauthorised reference to CAFE ON THE HILLTOP, or defamatory comments about CAFE ON THE HILLTOP or co-workers, would

constitute a breach of the Employment Agreement and result in an appropriate level of disciplinary action. The severity of this action will be determined on a case by case basis, with termination and legal remedies at the higher end of the scale.

2.9 Phone Calls Policy

During shifts, it is expected that private phone calls are made or taken only in the case of an emergency or by prior arrangement with Management. Suppliers, Management, and Clientele may contact the CAFE ON THE HILLTOP via telephone and therefore it is important that calls are always answered politely and professionally. The correct way to answer the telephone is as follows:

"Good morning/afternoon,
CAFE ON THE HILLTOP {name of site}
{Name of Employee} speaking".

2.10 Email Policy

Email facilities are provided for formal business correspondence. Take care to maintain the confidentiality of sensitive information. If emails need to be preserved, they should be backed up and stored off site. Limited private use of email is allowed if it does not interfere with or distract an Employee from his/her work. However, Management has the right to access incoming and outgoing email messages to check if an Employee's usage or involvement is excessive or inappropriate. Non-essential email, including personal messages, should be deleted regularly from the 'Sent Items', 'Inbox', and 'Deleted Items' folders to avoid congestion. Note that all emails sent must include the approved Business Disclaimer.

To protect CAFE ON THE HILLTOP from the potential effects of the misuse and abuse of email, the following instructions apply to all users:

- No material is to be sent as email that is defamatory, in breach of Copyright, or business confidentiality that may affect the good standing of CAFE ON THE HILLTOP; in the community or to its relationship with staff, customers, suppliers and any other person or business with whom it has a relationship.
- Emails must not contain material that amounts to gossip about colleagues or that could be considered as: offensive, demeaning, irritating, threatening, discriminatory, harassing, or concerning personal relationships.
- The email records of other persons are not to be accessed except by Management (or persons authorised by Management), or by authorised staff who have been requested

to attend to a fault, upgrade, or similar situation. Access in each case will be limited to the minimum needed for the task.

- When using email, a person must not pretend to be another person or use another person's computer without permission.
- Excessive private use, including mass mailing, "reply to all" etc. that are not part of the Employee's duties, is not permitted.
- Failure to comply with these instructions is a performance improvement offence and will be investigated. In serious cases, the penalty for breaching CAFE ON THE HILLTOP Policy or repetition of offences, may include dismissal.

2.11 Internet Use Policy

The internet is provided by CAFE ON THE HILLTOP for business use. Limited private use is permitted if the private use does not interfere with an Employee's work and that inappropriate sites are not accessed (i.e. pornographic, gambling, etc). Management has the right to access the system to check if private use is excessive or inappropriate. Failure to comply with these instructions is an offence and will be subject to appropriate investigation. In serious cases, the penalty for an offence or repetition of an offence, may include dismissal. Staff need to be aware that some forms of internet conduct may lead to criminal prosecution.

2.12 Expenses

The Company will reimburse you in accordance with CAFE ON THE HILLTOP Policy for expenses you properly incur during your employment.

2.13 Company Debts

If you owe money to the Company, forfeit the right to monies already paid, or you are paid more than you are entitled to, the Company may act by: withholding (to the extent permissible by Industrial Law) the amount forfeited, the amount of the debt, or the amount of oveCafe on the Hilltopyment from any amounts otherwise payable to you including salary or reimbursement of expenses.

2.14 Security

For security reasons only, Employees of the CAFE ON THE HILLTOP are permitted on site both in Back of House (BOH) and Front of House (FOH). Friends and family are not allowed in store while you are working unless visiting within the hospital. All personal belongings are your responsibility and no liability for loss or damage will be accepted by CAFE ON THE HILLTOP. All CAFE ON THE HILLTOP Employees are expected to be honest at all times. If you become

aware of dishonesty or illegal behaviour, you have a duty to report the matter to the Franchisee, Manager, Duty Manager, or Supervisor. Any Employee found to be dishonest, including but not limited to acts such as stealing food, money, or Company property from fellow workers, clients or the CAFE ON THE HILLTOP, will be reported to the relevant authorities and will be terminated immediately without notice.

2.15 Behaviour

Appropriate behaviour is always expected while working or visiting a CAFE ON THE HILLTOP site. As representatives of the business you are required to maintain the values and standards held by the CAFE ON THE HILLTOP. All Employees are required to maintain and abide by the following:

- Abusive/offensive language will not be tolerated.
- Loud/inappropriate behaviour will not be tolerated.
- Violence/physical abuse will not be tolerated.
- Eating and chewing gum is not acceptable both in BOH and FOH.

2.16 Punctuality

Punctuality is essential, and lateness will not be tolerated. If for any reason you are unable to attend work, or you expect to be late, you are required to inform the Manager, Duty Manager, or Supervisor as soon as possible. This is not only the professional and courteous approach to take should these circumstances arise, but it also enables your team to take appropriate measures to cover your absence.

2.17 Breaks

You are entitled to breaks depending on the length of your shift. Either the Manager, Duty Manager, or Supervisor will inform you of the time and length of your breaks. During your breaks you must be well presented and your behaviour must be as per work hours requirements. When wearing the Company's uniform, all staff are identified as a CAFE ON THE HILLTOP Employee.

2.18 Meal Discounts

Be informed that a special CAFE ON THE HILLTOP Smart Card has been issued to you by Head Office. Effective immediately, you are requested to carry the given card while on duty and present it when purchasing goods within outlets to claim discounted benefits. These benefits include CAFE ON THE HILLTOP meals/drinks at **20% off** (staff members only).

2.19 Expenses

The due amounts on Staff Smart Cards will be deducted from the respective Employees' payroll through the Accounts Department on a fortnightly basis before pay settlement. Please note:

- Smart Cards are the responsibility of respective card holders. If stolen, lost, or damaged, it must be reported IMMEDIATLY to Head Office.
- All purchases, payments, and transactions should ONLY be strictly conducted by the Manager, Duty Manager, or Supervisors.
- DO NOT process your own transactions under any circumstances.

3 Recruitment

3.1 Policy

Our business always aims to employ the best candidates based on merit and competence.

3.2 Procedure

Create a simple position description for the job covering key activities, tasks, skills required, expectations, deliverables, and safety considerations. When advertising, avoid discriminatory language (e.g. "young person" etc), but rather target the trait/attribute (e.g. "we seek an energetic person" etc). All advertising requests must be approved by the CEO. The recruitment process will include:

- Template Application Form to be used in face to face or telephone interviews.
- Practical Testing (probation and/or trial period).
- Reference Checks.
- Police Checks.
- Right to Work in Australia Checks.

The successful candidate should be given a Letter of Appointment setting out clear Terms and Conditions. This includes the nature of employment (Permanent, Part Time, or Casual). The Letter of Appointment will form the Employment Agreement once signed by both Employee and Employer, and should be presented as part of the Employment Kit along with the following:

- Employee Personal Details Form (partially completed from Application Form – new Employee to provide additional details as appropriate and acknowledgements as requested).
- Tax Declaration Form.
- Police Check Application Form.
- Fair Work Information Statement.

- Copies of policies and procedures provided for review.
- Other such documents as may be included from time to time.

Once the candidate has accepted the appointment, contact the unsuccessful candidates as a matter of courtesy.

Each Policy and Procedure document must be acknowledged as having been read. The new Employee should be directed to initial the Staff Acknowledgement page attached at the back of each document. These Policy documents are to always remain on the business premises. The time allowed for the new Employee to read these will vary but should be followed up by the Manager daily. Wherever possible, an appropriate allocation of time should be set aside for this to be done during the induction period (in paid time during the first two shifts).

If the new Employee has failed to provide all the information requested in the Employment Kit within the first pay cycle, the Manager must advise him/her that **CAFE ON THE HILLTOP cannot pay for hours worked without the relevant details**. Responsibility for the provision of clear and accurate payment information rests with the Employee.

If sufficient information is deemed to have been provided for payment to be processed but Employment Kit Forms or Acknowledgements have still not been completed by the conclusion of the second pay cycle, the Manager must advise the Employee that his/her employment will be suspended until this is remedied. If this coincides with a trial period, the Employee may alternately be advised that he/she would not be signed off for suitability to the position unless and until all Forms or Acknowledgements are completed.

3.3 Hours of Work

Your hours of work are dependent on your availability and site requirements. Any Manager, Assistant Manager, Supervisor, Chef, Kitchen Hand, Sandwich Staff, Barrister, Steward, or Customer Service Employee is required to complete the Employed Available Form that allows you to set out the days and hours you can work.

This allows the site Manager to create your working roster. It does not necessarily indicate that you will only be working the hours and days specified but simply allows us to understand your availability to work.

It is also important that you are aware that there is an expectation that you will be flexible and that from time to time you may be required to work outside your nominated hours. Generally, you will be advised of your required working hours via a weekly or fortnightly roster prepared by your Manager, Head of Department, or Franchisee. The rosters will be displayed on site weekly each

Monday. It is your responsibility to ensure you are aware of the hours you are rostered on and start times. Please take into consideration that your start time is the time you must commence your shift and not the time of arrival to your work place.

3.4 Centrelink Payment

If you are currently receiving payments from Centrelink, you are required to advise Centrelink of your employment status 14 days or sooner from the date of commencement.

4 Induction

4.1 Policy

CAFE ON THE HILLTOP will make sure all new Employees feel welcome and are ready to start work safely and competently. If at any time during your employment with the CAFE ON THE HILLTOP you have personal or work-related concerns resulting in feelings of discomfort or offense, please discuss with the Franchisee, Manager, Duty Manager, or Supervisor promptly.

4.2 Procedure

Complete an Induction Plan for each new starter with details of:

- Introductions.
- Workplace Tour.
- OH&S Procedures and Evacuation.
- Business Overview.
- Who's who.
- Nominated Mentor/Trainer.
- Work Safely Plans.
- Food Safety Training Plan.
- IT System Orientation.
- Copy of the Fair Work Information Statement.
- Policy and Procedural Requirements, e.g. Equal Employment Opportunity.

5 Training

5.1 Policy

CAFE ON THE HILLTOP will give Employees adequate training to do their job safely and competently. Our business believes training is a two-way process. We encourage Employees to participate and to highlight any gaps in their own skills or knowledge they believe they have.

Training includes internal on-the-job training, written instructions such as standard operating procedures, coaching, external training and courses. Safety and Food Safety training takes precedence.

6 Probation

6.1 Policy

Probation is a period of review and appraisal to make sure both the business/Employee is satisfied, and that the role is as advertised and being performed satisfactorily. Ongoing permanent employment is given only when the Employee satisfactorily completes their probation.

6.2 Procedure

Give informal and formal appraisal during the probation period. Give at least one formal appraisal four weeks before the end of probation. At the end of the probation period, complete a final probation appraisal and advise the Employee of the result.

7 Trial Period

7.1 Policy

Candidates for casual or permanent employment in the below positions, irrelevant of their qualification or classification, are required to work a minimum of 3 hours and a maximum of two weeks on a trial basis before confirmation of their engagement may be provided. This includes:

- Baristas
- Sandwich Hands
- Kitchen Hands
- Counter Hands
- Chefs
- Waiters/Waitresses
- Catering Personnel
- Store Persons
- Drivers
- Retail Assistants
- Customer Service Representatives

All trial hours worked are to be paid at the Introductory rate that applies to the relevant classification under the Restaurant Industry Award 2010 or other industrial instrument as may be more appropriate to those above-mentioned positions falling outside the cafe environment.

7.2 Introductory Pay Rate: Training Period

The Introductory Pay Rate may be paid for up to 3 months from commencement of the Trial Period. This length of time is enough for an acceptable amount of on-the-job training to be completed and all necessary certificates obtained so that the Employee may fulfil the job requirement with a lesser amount of assistance and mentoring.

At the end of the Training Period, which can be reduced or extended by the Manager or Executive Chef in consultation with the Employee, CAFE ON THE HILLTOP shall commence paying the relevant rate of pay according to classification and age as specified in the Restaurant Industry Award 2010 or other industrial instrument as may be more appropriate (referred to in the Employment Agreement as the "Pay Rate After Introductory Period").

7.3 Procedure

During the interview process the Applicant will be asked to acknowledge his/her willingness to work a trial period of between 3 hours and 2 weeks. The Manager, the Executive Chef, and the CAFE ON THE HILLTOP QA Manager must sign off the suitability of the Candidate before a Change of Employment Details Form can be completed. This form must be generated by the Manager or the Executive Chef and provided to Head Office with Executive authorisation in each of the following situations:

- When the Trial Period ends.
- When the Probation Period ends.
- When the Training Period has concluded.
- If the employment status changes from Casual to Permanent and vice-versa.
- If the employment classification and/or pay rate changes.
- If the Employee relocates permanently to a different CAFE ON THE HILLTOP location.

If the Employee has not completed and returned all employment forms including the Tax Declaration and Police Check application, Head Office will override any authorised Change of Employment Details and extend the payment of the Introductory Rate indefinitely.

8 Occupational Health and Safety (OH&S)

8.1 Policy

CAFE ON THE HILLTOP will, as far as practicable, provide a safe work environment for the health, safety and welfare of our Employees, Contractors, Visitors and members of the public who may be affected by our work. To do this, CAFE ON THE HILLTOP will:

- Develop and maintain safe systems of work and a safe working environment.
- Consult with Employees and Health and Safety Representatives on safety.
- Provide protective clothing and equipment and enforce their use.
- Provide information and training for Employees.
- Assess all risks before work starts on new areas of operation, for example, buying new equipment and setting up new work methods, and regularly review these risks.
- Remove unacceptable risks to safety.
- Provide Employees and Contractors with adequate facilities (such as clean toilets, cool and clean drinking water, and hygienic eating areas).

Ultimately, everyone at the workplace is responsible for ensuring health and safety at that workplace. All persons responsible for the work activities of other Employees are accountable for:

- Identifying practices and conditions that could injure Employees, Clients, members of the public, or the environment.
- Controlling such situations or removing the risk to safety. If unable to control such practices and conditions, these must be reported to a Manager.
- Making sure Workers use Personal Protective Equipment (PPE) and training workers to use PPE correctly.
- Making sure PPE is maintained and working properly.

CAFE ON THE HILLTOP demands a positive, proactive attitude and performance with respect to protecting health, safety, and the environment by all Employees irrespective of their position.

8.2 Manual Handling Policy

It is CAFE ON THE HILLTOP's policy to provide all Employees with a safe and healthy workplace by identifying, assessing, and controlling manual handling risks. While Management is responsible for the health, safety, and welfare of all staff, all Employees must report potential and actual manual handling hazards. Never lift or manually handle items larger or heavier than you can easily support. If you are in any doubt, do not hesitate to ask for help.

8.3 Workers' Compensation Policy

All Employees may be eligible for Workers' Compensation benefits if injured while at work. The priority is medical attention. The injured worker or nearest colleague should contact one of CAFE ON THE HILLTOP's First Aiders. For a serious injury call an ambulance. Any Employee who is injured on the job, experiences a safety incident, or a near miss must report the incident to their Manager. The Manager must write a report in the Register of Injuries, Incidents, and Near Misses. This standard report must include:

- Employee's name and job details.
- Time and date of injury.
- Exact location where the injury/incident occurred.
- How the injury/incident happened.
- Details of the injury/illness and the area or areas of the body injured.
- Names of any witnesses.
- Name of the person entering details in the Register.
- Date the Employer was notified.

CAFE ON THE HILLTOP will let the injured Employee know in writing that we have received notification of any injury or illness reported in the Register. The Manager must report serious injuries to WorkSafe immediately.

8.4 Smoking Policy

CAFE ON THE HILLTOP has a non-smoking policy. Smoking is not permitted on CAFE ON THE HILLTOP or hospital property at any time. Smokers who need to take breaks should do so in their allotted lunch breaks (only full-time staff are allowed one, 15-minute break per day, in addition to their lunch break). These breaks must not be taken at the entrance to CAFE ON THE HILLTOP offices or any hospital**.** Excessive smoking breaks will be regarded as absenteeism and performance improvement action may be taken.

8.5 Alcohol and Drugs Policy

CAFE ON THE HILLTOP is concerned by factors affecting an Employee's ability to safely and effectively do their work to a satisfactory standard. The business recognises alcohol or other drug abuse can impair short-term or long-term work performance and is an Occupational Health and Safety risk. CAFE ON THE HILLTOP will do its utmost to create and maintain a safe, healthy, and productive workplace for all Employees. CAFE ON THE HILLTOP has a zero-tolerance policy regarding the use of illicit drugs on their premises or the attending of other business-related

premises while under the influence of illicit drugs. Contravening either of these points may lead to instant dismissal. CAFE ON THE HILLTOP does not tolerate attending work under the influence of alcohol. This may result in performance improvement action or dismissal.

CAFE ON THE HILLTOP, at times, makes alcohol available to staff over the age of 18. Limiting the consumption of any alcohol made available is the responsibility of the Employee. Driving over the legal limit or under the influence of illicit drugs is illegal.

9 Equal Employment Opportunity (EEO)

9.1 Policy

This Policy applies to all staff including Contractors and covers all work-related functions and activities including external Training Courses sponsored by CAFE ON THE HILLTOP. It also applies for all recruitment, selection, and promotion decisions. The objective of CAFE ON THE HILLTOP's Equal Opportunity Policy is to improve business success by:

- Attracting and retaining the best possible Employees.
- Providing a safe, respectful, and flexible work environment.
- Delivering our services in a safe, respectful, and reasonably flexible way.

10 Discrimination, Sexual Harassment, and Bullying

CAFE ON THE HILLTOP is committed to providing a workplace free from discrimination, sexual harassment, and bullying. Behaviour that constitutes discrimination, sexual harassment, or bullying will not be tolerated and will result in action being taken, which may include dismissal.

10.1 Discrimination

For the purposes of this policy, the following definitions apply:

Direct discrimination occurs when someone is treated unfairly and is disadvantaged because of a personal characteristic that is protected under the relevant state's law.

Indirect discrimination occurs when treating everybody the same way disadvantages someone because of a personal characteristic.

Sexual harassment includes unwelcome conduct of a sexual nature in circumstances in which a reasonable person, having regard to all the circumstances, would have anticipated that the person harassed would be offended, humiliated, or intimidated.

Workplace bullying may include behaviour that is directed toward an Employee, or group of Employees, that creates a risk to health and safety e.g. physical and/or verbal abuse, excluding or isolating individuals, or giving impossible tasks.

CAFE ON THE HILLTOP provides equal opportunity in employment to all suitably able people without discrimination in accordance with State and Federal Equal Opportunity legislation. Discrimination includes not providing equal opportunity based on:

- ✓ Age
- ✓ Breastfeeding
- ✓ Carer status
- ✓ Disability/impairment
- ✓ Employment activity
- ✓ Gender identity
- ✓ Industrial activity
- ✓ Lawful sexual activity
- ✓ Marital status
- ✓ Parental status
- ✓ Personal association with someone having any of these characteristics
- ✓ Physical features
- ✓ Political activity/belief
- ✓ Pregnancy
- ✓ Race
- ✓ Religious activity/belief
- ✓ Sex
- ✓ Sexual orientation

Any Employee found to have contravened this policy will be subject to disciplinary action, which may include dismissal as outlined in the complaint procedure below. Employees must report any behaviour that constitutes sexual harassment, bullying, or discrimination to their Manager. Employees will not be victimised or treated unfairly for raising an issue or making a complaint.

Procedure: Making a Complaint

If you believe you are being, or have been, discriminated against, sexually harassed, or bullied you should follow this procedure. Tell the offender the behaviour is offensive, unwelcome, and against business policy and should stop (only if you feel comfortable enough to approach them

directly, otherwise speak to your Manager). Keep a written record of the incident(s). If the unwelcome behaviour continues, contact your supervisor or Manager for support.

If this is inappropriate, you feel uncomfortable, or the behaviour persists, contact another relevant senior Manager. Employees may also lodge a complaint with the Victorian Equal Opportunity and Human Rights Commission or relevant state's equivalent, the Australian Human Rights Commission, or act under the *Fair Work Act 2009*. Employees should feel confident that any complaint they make is to be treated as confidential as far as possible.

Procedure: Receiving a Complaint

When a Manager receives a complaint or becomes aware of an incident that may contravene CAFE ON THE HILLTOP's EEO Policy, listen to the complaint seriously and treat the complaint confidentially. Allow the complainant to bring another person to the interview if they choose to. Ask the complainant for the full story, including what happened, step by step and take notes, using the complainant's own words.

Ask the complainant to check your notes to ensure your record of the conversation is accurate. Explain and agree on the next action with the complainant. If investigation is not requested (and the Manager is satisfied that the conduct complained is not in breach of CAFE ON THE HILLTOP EEO policies) then the Manager should:

- ✓ Act promptly.
- ✓ Maintain confidentiality.
- ✓ Pass any notes on to the Manager's Manager.

If an investigation is requested or is appropriate, follow the next procedure (see next paragraph).

Procedure: Investigating a Complaint

When a Manager investigates a complaint, they should follow this procedure. Do not assume guilt. Advise on the potential outcomes of the investigation if the allegations are substantiated. Interview all directly concerned, separately. Interview witnesses, separately. Keep records of interviews and the investigation. Interview the alleged harasser separately and confidentially and let the alleged harasser know exactly what they are being accused of. Give them a chance to respond to the accusation. Make it clear they do not have to answer any questions, however, the Manager will still decide regardless. Listen carefully and record details. Ensure confidentiality to minimise disclosure. Decide on appropriate action based on the investigation and evidence collected.

11 Pregnancy at Work

11.1 Advising of Pregnancy

CAFE ON THE HILLTOP encourages Employees to inform their Manager of their pregnancy as soon as possible. However, we respect that an Employee may not wish to advise us of her pregnancy earlier than the minimum notice period. We also respect an Employee's wishes regarding when it is appropriate to tell colleagues about the pregnancy.

See the Parental Leave Policy about requirements for taking unpaid parental leave, including notice periods.

11.2 Harassment While Pregnant

CAFE ON THE HILLTOP is committed to ensuring the safety of pregnant Employees and considers harassment, bullying, and discrimination to be unacceptable behaviour (see the Equal Employment Opportunity Policy for our general policies and procedures on harassment, bullying, and discrimination).

11.3 Safety at Work

CAFE ON THE HILLTOP understands pregnancy to be a healthy and normal process and recognises that women have different experiences. When an Employee notifies her Manager that she is pregnant, the Manager will ask the Employee to let them know if they experience any changes to their work capacity during the pregnancy. The Employee and her Manager will then discuss what is needed to keep the Employee safe at work and adjustments will be made accordingly where possible.

Options will be available to reduce hours, change duties, lighten duties, rotate tasks, be provided with a chair, and provision of additional breaks. These are common ways to ensure safety at work and will be considered on a case-by-case basis.

11.4 Transfer to a Safe Job

If an Employee is fit for work but unable to do her usual job because of her pregnancy, she is entitled to be transferred to a safe job. An Employee must have advised of her intention to take unpaid parental leave prior to applying for a transfer to a safe job.

The Employee will need to provide evidence such as a medical certificate that she is fit for work but unable to continue in her current position because of illness, risk due to the pregnancy, or hazards connected with the position.

If these requirements are met, CAFE ON THE HILLTOP will make every attempt to transfer the Employee to a safe job for the risk period with no change to her pay and conditions.

If there is no safe job available, then an Employee is entitled to take paid 'no safe job' leave. This is not sick leave – it is a separate paid leave type (pregnancy- no safe job). This leave will be paid at the rate specified in the award or agreement which, at a minimum, can be no lower than the Employee's base rate of pay for her ordinary hours of work. In the six weeks prior to the expected date of the birth of the child, an Employer may ask an Employee on safe job leave for medical certificates stating that she would be fit to perform a safe job if one were available to her. An Employee may be required to take unpaid parental leave (instead of paid no safe job leave) if she does not provide a medical certificate within seven days or she provides a medical certificate stating she is not fit for any work.

The 'no safe job' leave ends when the Employee starts unpaid parental leave if the Employee returns to work or takes unpaid special maternity leave (see the Parental Leave Policy).

11.5 Working Until the Birth

A pregnant Employee may work until the expected date of birth of her child. If she wishes to continue working in the last six weeks of her pregnancy, she may be requested to provide a medical certificate within seven days confirming she is fit to work.

If the medical certificate indicates the Employee is not fit for work, she may be required to start parental leave or take a period of unpaid leave as soon as practicable. (See the Parental leave policy).

11.6 Return to Work

If the Employee has agreed to contact during leave, then towards the end of the leave period, the Manager should confirm the Employee's intention to return on the agreed date. The Employee also may want to discuss any requests for flexible work arrangements at this time (see the Flexible Working Arrangements Policy).

An Employee must provide four weeks' notice if they want to extend their leave beyond the return date that was initially advised (see the Parental Leave Policy).

The Employee on parental leave has the right to return to the job they held prior to going on leave, including any promotion. If that position no longer exists, the Employee will be given whichever other available position is nearest in status and remuneration for which the Employee is qualified and suited.

If an Employee was placed in a safe work position prior to leave, the Employee is entitled to return to the position they held immediately before the safe work position.

If the pre-parental leave position no longer exists, CAFE ON THE HILLTOP will follow its redeployment and redundancy procedures to determine if a suitable alternative position is available.

11.7 Breastfeeding at Work

CAFE ON THE HILLTOP aims to understand and support mothers in the workplace, including accommodating breastfeeding as much as possible.

An Employee should discuss her needs with her Manager and CAFE ON THE HILLTOP will endeavour to make a private space available or other arrangement made by agreement. Depending on the Employee's duties this may include cover while she is away from her work environment.

12 Flexible Working Arrangements

Employees may request flexible working arrangements based on parental and carer responsibilities. Employees are encouraged to put the request in writing. To comply with the *Equal Opportunity Act*, CAFE ON THE HILLTOP will consider this request, and consider all relevant facts and circumstances in deciding whether to agree to the request. Such a request will not be refused unless it is reasonable to do so.

Circumstances that may be relevant to determining whether a refusal is or is not reasonable include:

- The nature of the Employee's work and parental or carer responsibilities.
- The nature and cost of the arrangements required for an Employee to fulfil their family or carer responsibilities.
- The financial circumstances of the Employer.
- The size and nature of the workplace and the Employer 's business.
- The effect of the flexible working arrangements on the workplace, including the financial impact on the business.
- The consequences for the Employer of having the flexible working arrangements.
- The consequences for the Employee of not having the flexible working arrangements.

Other factors that might be relevant in a case include:

- When the arrangements are to commence.
- How long the arrangements will last.
- Information that has been provided by the Employee about their situation.
- The accrued entitlements of the Employee, such as personal, carer's or annual leave.

- Whether any legal or other constraints affect the feasibility of the Employer accommodating the responsibilities, such as Occupational Health and Safety laws or award penalty rates.

In addition, under the National Employment Standards, Employees who have at least 12 months continuous service, with responsibility for the care of a child under school age, or for care of a child under 18 with a disability, have the right to request flexible working arrangements.

This right applies to all Employees including permanent full-time and part-time Employees, as well as casual Employees, regardless of role or job function.

Employees must put such a request in writing. CAFE ON THE HILLTOP will provide a written response granting or refusing the request within 21 days and will only refuse such requests on reasonable business grounds. These reasons will be detailed in the written refusal.

12.1 Options for Flexible Work Practices

Flexible work options which may be considered by CAFE ON THE HILLTOP include:

- Permanent, part-time work.
- Graduated return to work (for Employees returning from parental leave), e.g. the Employee returns part time and then builds up to full-time work flexible start and finish times for staff to accommodate childcare and school pick-up requirements.
- Flexible rostering such as working split shifts.
- Job-sharing: where two or more Employees share one full-time position, each working on a part-time basis.
- Work from home.
- Purchased leave (48/52 leave): where Employees take an additional four weeks leave per year by adjusting their salary to 48 weeks paid over the full 52 weeks.
- Compressed hours: where the Employee works additional daily hours to provide for a shorter working week or fortnight. This is not an exhaustive list and other options may be agreed on. Employees utilising flexible work practices will be treated no less favourably than any other Employee. Flexible working is not a barrier to promotion or supervisory responsibilities.

13 Leave Policy

13.1 General Leave Policy

Unless specified otherwise, Employees referred to in this policy mean permanent full-time or part-time Employees.

All Employees are entitled to leave in accordance with the relevant awards or agreements and statutory provisions. Where the entitlements or practices in this document conflict, the applicable award, workplace agreement, employment contract, or employment law takes precedence.

All planned leave must consider workloads and the Employee's needs and be mutually agreed on. Leave must be approved of in advance, except when the Employee can't anticipate the absence. Any documents regarding leave will be kept in the Employee's personnel file.

13.2 Annual Leave Policy

Each Employee is entitled to a minimum of 20 days annual leave a year (pro-rata for part-time). Leave entitlements are calculated from the date they started work and accrue in accordance with workplace relations legislation or industrial instruments. Annual leave counts towards continuous service (used when calculating long service leave). Applications for annual leave need to be lodged 2 weeks in advance. An Employee is expected to take accrued annual leave for business close periods. If insufficient leave is accrued, CAFE ON THE HILLTOP may direct an Employee to take unpaid leave. CAFE ON THE HILLTOP will decide on a case-by-case basis whether it will agree with an Employee to 'cash out' annual leave as permitted by workplace relations legislation or any industrial instrument. In some circumstances, leave in advance of what leave has accrued may be approved. This is conditional on the Employee agreeing to the business deducting any advance in the event of termination, or to the Employee accepting leave without pay.

13.3 Personal (Sick) Leave Policy

An Employee is entitled to 10 days of personal leave every 12 months. Paid personal leave accrues at the rate of 8.33 hours per month of service and is cumulative. An Employee should notify his/her Manager as soon as possible if they are unable to attend work due to illness or injury. Management, at its discretion, may request evidence such as a medical certificate showing that the Employee was entitled to take personal leave during the relevant period.

13.4 Carer's Leave Policy

Carer's leave is available to an Employee to take direct care of an ill family or household member or if an emergency affects a family or household member. It is typically part of personal (sick) leave and is dealt with similarly to the above. Employees including casual Employees are entitled to take up to two days unpaid carer's leave for each occasion of family or household member illness or emergency. An Employee cannot take unpaid carer's leave if they could instead take paid carer's leave.

13.5 Compassionate Leave Policy

Compassionate leave is paid leave taken by an Employee to spend time with a family member/member of the Employee's household, who has a personal illness, or injury, that poses a serious threat to his/her life, or after the death of a family member/member of the Employee's household. Each Employee is entitled to a period of two days paid compassionate leave for each occasion where a family member has died, or the Employee needs to spend time with a seriously ill family member. Management reserves the right to request proof that the compassionate leave is warranted. Additional unpaid leave maybe granted at Management's discretion. Casual Employees are entitled to two days unpaid compassionate leave for each occasion.

13.6 Long Service Leave Policy

Employees are entitled to long service leave in line with the relevant state's long service leave laws (or per a relevant Award, Agreement or employment contract).

13.7 Parental Leave Policy

Unpaid parental leave. Employees (including a de facto, same sex partner, or single person) who are expecting a child or adopting a child are eligible for 52 weeks of unpaid parental leave if they are:

- Permanent full-time or part-time with at least 12 months service prior to the expected date of birth or adoption placement.
- Casual with 12 months regular and systemic service who have a reasonable expectation of continuing regular and systematic work.

After birth or adoption, the parent with responsibility for the care of the child is entitled to unpaid parental leave. Employees who are pregnant may commence leave up to six weeks before the expected date.

Employees may request to extend their leave by a further 12 months (for a total of 24 months maximum), to be submitted in writing at least four weeks before the end of the original 12 months unpaid parental leave.,

CAFE ON THE HILLTOP will respond in writing within 21 days and may refuse only on reasonable business grounds. The written response will include details if the request is refused.

13.8 Parental Leave for Partners

Generally, only the parent with responsibility for the care and welfare of the child is entitled to take unpaid parental leave. However, up to three weeks unpaid parental leave may be taken at the same time by both members of an Employee couple, with the period of concurrent leave starting on the day of the birth (unless the Manager agrees to other arrangements).

13.9 Applying for Leave

An Employee wishing to take unpaid parental leave must provide written notice at least 10 weeks before starting the leave (or as soon as is practicable) including the intended leave start and end dates.

Leave dates or any changes of dates must be confirmed at least four weeks before the leave starts. The Manager will confirm the leave and any affected entitlements such as continuous service in writing.

13.10 Adoption

Because CAFE ON THE HILLTOP recognises that the timing of placement for an adopted child may be uncertain, Employees should keep their Manager informed of any changes to the likely placement date and commencement of leave.

13.11 Paid Leave

Annual leave: if the Employee has paid annual leave available, he or she may, in agreement with the Manager, take some or all that leave at the same time as the unpaid parental leave.

13.12 Time off for Antenatal Appointments, Adoption Interviews, or Examinations

Personal leave may be available for attendance at medical appointments. Appointment times and the availability of leave should be discussed with the Manager. An Employee may take up to two days unpaid pre-adoption leave. Employees must provide notice of the leave including expected leave period as soon as is practicable (which may be after the leave has started).

If an Employee requires more than two days pre-adoption leave, they should discuss their requirements with their Manager.

13.13 Leave for Pregnancy Related Illness

If an Employee is ill during her pregnancy, she may access her ordinary sick leave entitlements, including any accrued leave.

If an Employee experiences extended illness due to pregnancy, she can access unpaid 'special maternity leave' for the period her treating doctor certifies is necessary. Special maternity leave is included in the 52 weeks available unpaid parental leave period.

The Employee must make a special maternity leave application as soon as practicable which details the period of leave required. The Manager may request a medical certificate and if so, this must be provided by the Employee.

13.14 Loss of a Child While Pregnant

If the pregnancy ends within 28 weeks before the due date without a live birth, the Employee may take unpaid 'special maternity leave' for the period her treating doctor certifies is necessary. Unpaid parental leave is not available in this situation, instead special maternity leave applies.

The Employee must make a special maternity leave application as soon as is practicable, specifying the expected leave period and providing a medical certificate if this is requested by the Manager. CAFE ON THE HILLTOP will be sensitive to the personal issues associated with this type of leave.

13.15 During Parental Leave

Even though the Employee is on leave, they will continue to be protected against discrimination as an Employee (see the Equal Employment Opportunity policy). CAFE ON THE HILLTOP respects that some Employees do not want any contact while on leave while others do. The Manager should discuss with the Employee what sort of communication the Employee would like while on leave and record this agreement.

While an Employee is on unpaid parental leave, CAFE ON THE HILLTOP will ensure that the Employee is considered and kept informed of significant changes that may occur in the business. Where a decision will have a significant effect on the status, pay, or location of the pre-parental leave position, CAFE ON THE HILLTOP will take all reasonable steps to inform the Employee and discuss the effect of the decision. During any restructures, Employees on parental leave will be treated no less favourably than other Employees and will be kept informed of the process.

If an Employee has applied for less than 52 weeks unpaid parental leave, they can extend the period of leave once to take the total leave up to a maximum of 52 weeks. The Employee must give at least four weeks' notice prior to the end date of the original leave period. A period of unpaid parental leave may be reduced by agreement between CAFE ON THE HILLTOP and the Employee.

An Employee can resign while on parental leave, but they must give the required notice of resignation as set out in the Restaurant Industry Award 2010 or Letter of Offer.
Employees should not undertake any activity during leave which is inconsistent with the employment contract, including other employment and they should remain responsible for the care of the child.

The Employee's position may be filled on a temporary basis while they are on leave. CAFE ON THE HILLTOP will notify the replacement Employee that their employment in this role is temporary and that the pregnant Employee has the right to return to the position.

13.16 Time in Lieu Policy

CAFE ON THE HILLTOP will grant time in lieu to an Employee who is required to work outside their normal hours. Time worked towards time in lieu must be approved in advance unless exceptional circumstances exist, in which case Management will consider granting approval after the time is worked.

Time in lieu will be added to the Employee's annual leave. CAFE ON THE HILLTOP will record time in lieu credits and debits. Generally, Employees should take time in lieu in the same financial year within which they accrue it. A Manager must approve time in lieu leave. An Employee cannot accrue more than 38 hours of time in lieu.

13.17 Leave Without Pay Policy

Management has the discretion to approve leave without pay that an Employee is not otherwise entitled to.

13.18 Jury Duty Policy

An Employee is entitled to paid leave for jury duty in accordance with Legislation. An Employee on jury service should supply the official request to attend, the details of attendance, and the amount the court has paid them. CAFE ON THE HILLTOP will reimburse the Employee the difference between this amount and their base salary.

13.19 Emergency Services Leave Policy

If an Employee needs to take temporary absence from work because of voluntary emergency management activities (for example, as a volunteer dealing with an emergency or natural disaster as a member of SES, CFA, or Army Reserve) then they should ask Management for leave as soon as possible after they become aware of the need to take leave.

CAFE ON THE HILLTOP will support such activities wherever possible as an important community service. CAFE ON THE HILLTOP may require evidence of these activities.

14 Performance Review

14.1 Policy

CAFE ON THE HILLTOP has a policy of reviewing each Employee's work performance twice a year (for example, in March and September). A performance review is designed to enable the Manager to measure the performance of each Employee in an objective manner. Such a review (which will be kept strictly confidential), will enable Management and the Employee concerned to identify areas for improvement and set targets for the current financial year. In cases where performance has been unsatisfactory, corrective steps will be taken and a further performance review conducted within three months.

14.2 Procedure

The performance reviews must be discussed with the Employees and signed by them and a copy forwarded to the HR Department for central filing and information.

Managers will find that after they have conducted a performance review, they will be better placed to make objective recommendations regarding a salary review. However, please note that a performance review is not the same as a salary review.

15 Performance Management

15.1 Policy

The purpose of performance Management is to improve performance. It is an ongoing process. It should include informal and formal review. We encourage a two-way process, that is, Employees can also give Management feedback on performance.

All Employees will undergo a formal performance review with their immediate Manager at least once a year.

15.2 Procedure

The Manager and the Employee agree on the date for a performance appraisal meeting to allow time to prepare. The Manager and Employee will meet and openly and constructively discuss performance over the period. The Manager and the Employee will agree any objectives and outcomes for the next appraisal period. Training and development will be considered as part of the process. Notes should be taken of the meeting and copies kept.

Outside of this formal process, Employees are encouraged to raise any issues they have when they arise.

16 Performance Improvement

16.1 Policy

Where warranted, CAFE ON THE HILLTOP will use improvement processes to improve performance. Should such improvement processes be unsuccessful in improving an Employee's performance, CAFE ON THE HILLTOP may decide to terminate an Employee's employment.

Depending on the circumstances, performance improvement action may include verbal or written warnings, counselling, or retraining.

CAFE ON THE HILLTOP requires a minimum standard of conduct and performance which will be made clear to Employees in Management appraisals. If an Employee does not meet this standard, CAFE ON THE HILLTOP will take appropriate corrective action, such as training. Formal performance improvement procedures will generally only start when other corrective actions fail. If an Employee deliberately breaches business policy or procedure, or engages in misconduct, CAFE ON THE HILLTOP may start improvement procedures, or, in cases of serious misconduct or breach of policy, may dismiss an Employee. Each Employee must understand their responsibilities, be counselled, and given the opportunity to reach the standards expected of them. CAFE ON THE HILLTOP will give an Employee the opportunity to defend themselves before Management takes further action.

16.2 Procedure

CAFE ON THE HILLTOP will advise the Employee of any shortcomings in their performance and give them an opportunity to respond. Once they respond, the Manager will consider their response and decide if performance improvement action should be taken. CAFE ON THE HILLTOP will provide support such as training where appropriate. If the Employee is given a verbal warning, the Manager should make a note of it, date it, and sign it.

The Manager will advise the Employee in clear terms what they see as the performance problem or the unacceptable conduct. To highlight the deficiency, they should use specific examples, and refer to the correct policy or procedure. The Manager will allow the Employee to respond before deciding and consider the Employee's responses. The Employee may have a support person present at such meetings. The Manager will decide if more action is needed. If a written warning follows, the Manager is to:

- Document it and give the Employee a copy.
- Give the Employee the opportunity (and their support person the opportunity) to sign the warning.
- Keep a copy on file.

The warning must clearly define:

- The deficiency.
- A clear explanation of the expected standard required.
- The due date the Employee needs to achieve the improvement.
- How the business will help the Employee achieve the improvement required.
- Consequences of failing to improve.

The Manager concerned will keep a record of all meetings, training and/or coaching given, and a summary of discussions and put a copy on the Employee's Personnel File. This should include date, location and time of discussion. They will continue to support the Employee and note the support they give, for example, training or counselling. If the Employee's performance or conduct doesn't improve, the Manager will give the Employee a final written warning and follow steps 4–10 above. This document needs to warn the Employee in clear terms CAFE ON THE HILLTOP will terminate their employment if there is not enough improvement or a sustained improvement in their performance. Note that some circumstances require proceeding directly to a second or final warning.

17 Gross or Serious Misconduct Policy

Instant dismissal for gross or very serious misconduct is possible (depending on the facts involved). Management should seek advice before taking this step.

17.1 Procedure

The Manager is to investigate the alleged offence thoroughly, including talking to witnesses, if any. Following a thorough investigation, the Manager can terminate/dismiss the Employee if this is

still appropriate. The Manager should keep a file of all evidence collected and action taken in these circumstances.

The Manager should ask the Employee for their response to the allegation (taking notes of this discussion) and **allow them to have representation**. The **Manager should also have a witness** present. The Manager shall consider the Employee's response and circumstances.

To lessen the impact of dismissal on the Employee, some or all the following should be offered:

a) The option of working/not working the notice period.
b) A Statement of Service or Written Reference for the Employee.
c) Outplacement job search services/counselling.

Checklist: How to Handle a Dismissal Meeting

Select an appropriate time and location such as a neutral meeting room. **Never** terminate an Employee over the phone, by text message, or email. Only dismiss an Employee via email if there is no possibility of a face-to-face meeting. Have all the relevant documents, such as personnel files, the current Employment Agreement or Award, Notification of Dismissal, and Pay Advice prepared in advance. Have an outline of what you intend to say (in writing) to assist in providing a reason for the dismissal. Give the Employee an opportunity to respond to the reasons for dismissal and be prepared for a range of Employee reactions, such as distress, anger, defensiveness, and argumentativeness.

Smart card accounts are to be deactivated upon dismissal. Time Target access along with MYOB files are to be deactivated. The Termination date is to be set according to individual circumstances All Company belongings to be returned prior to leaving the premises and/or after the Employee's final shift (items not available at this time must be returned within 7 working days of final day). CAFE ON THE HILLTOP will send the terminated Employee a Letter of Termination noting brief details.

18 Personal Relationships Policy

The Employee must declare if he/she has developed any personal or private intimate relationship with another co-worker or another employee of the Hospital. If a personal and a consensual relationship arise between employees, both employees agrees to indemnify the employer from any legal implications this relationship might cause in the future including sexual or assault allegations at work or outside working hours. Both the employees must choose either to work on different shifts or elect to work in another outlet if permittable during this personal or consensual relationship.

No relatives, friends are allowed to be hired or work in the same outlet without prior permission from the employer. The Employee agrees that he/she are not allowed to misuse the privilege of being an employee outside working hours and use it in any shape or form to commit a criminal act including assault or other sexual criminal acts including the examples below. If a criminal act is reported to the employer or the representative of the employer became aware of such an act, The employee agrees and must voluntary step down as a first action until investigation is concluded and the employee is proven innocent, and if the employee was proven guilty then the employer must dismiss the employee instantly.

All employees are required to report indecent behaviour including sexual harassment, and any inappropriate sexual harassment or bullying to another employee especially underage employee.

Examples of Sexual Harassment:

- Staring, leering or unwelcome touching.
- Suggestive comments or jokes.
- Unwanted invitations to go out.
- Intrusive questions about a person's private life or body.
- Unnecessary familiarity, such as deliberately brushing up against a person.
- Emailing pornography or indecent material.
- Displaying images of a sexual nature around the workplace.
- Communicating content of a sexual nature through social media or text messages.
- Physical molestation or assault.
- Indecent exposure
- Sexual assault
- Stalking
- Obscene communications (telephone calls, letters, etc)

19 Grievances

19.1 Policy

CAFE ON THE HILLTOP supports the right of every Employee to lodge a grievance with their Manager if they believe a decision, behaviour, or action affecting their employment is unfair. An Employee may raise a grievance about any performance improvement action taken against them. We aim to resolve problems and grievances promptly and as close to the source as possible.

When necessary, CAFE ON THE HILLTOP will escalate a grievance to the next higher level of authority for more discussion and resolution and continue escalating it to the level above until it is resolved.

Managers will do their utmost to action grievances objectively, discreetly, and promptly. Be aware that grievances that are misconceived, vexatious, and lacking substance may result in disciplinary action being taken against the Employee lodging the grievance.

19.2 Procedure

The Employee should try to resolve the grievance as close to the source as possible. This can be informal and verbal. At this stage, every possible effort should be made to settle a grievance before the formal grievance process starts. If the matter still can't be resolved, the process continues and becomes formal.

To start the formal grievance the complainants must fully describe their grievance in writing, with dates and locations wherever possible and how they have already tried to settle the grievance.

The person(s) against whom the grievance/complaint is made should be given the full details of the allegation(s) against them. They should have the opportunity and a reasonable time to respond before the process continues. If the grievance still cannot be resolved, the matter must be referred to the most senior Manager for consideration and a final decision. A grievance taken to this level must be in writing from the Employee.

20 Dispute Resolution

20.1 Procedure

In the event of a dispute arising in relation to a matter appearing in this agreement, the parties will at first instance genuinely attempt to resolve the matter at the workplace by discussion between the Employee or Employees concerned and the relevant supervisor. If such discussions do not resolve the dispute, the parties will genuinely attempt to resolve the dispute by discussion between the Employee or Employees concerned and more senior levels of Management. At any time, a party to the dispute may appoint another person, organisation, or association to a company or represent them in relation to the dispute. If the dispute is unable to be resolved at the workplace, and all agreed steps for resolving it have been taken, the dispute may be referred to Fair Work Australia (FWA) for resolution.

Any dispute referred to FWA should be dealt with by a member agreed by the parties at the time or, in default of agreement, a member nominated by either the head of the relevant panel or the President. On a dispute being notified to it, FWA may exercise such powers and functions as the

parties agree are appropriate at the time, which may include the resolution of the dispute by mediation and/or conciliation and, if the dispute remains unresolved, by arbitration.

In any arbitration, FWA may exercise the procedural powers in relation to hearings, witnesses, evidence, and submission which are necessary to make arbitration effective. The decision of FWA following any arbitration will bind the parties, subject to either party exercising a right of appeal against the decision to a Full Bench. While the dispute resolution procedure is being conducted work shall continue normally unless an Employee has a reasonable concern about an imminent risk to his or her health and safety.

21 Conflict of Interest

21.1 Policy

Conflict of interest arises whenever the personal, professional, or business interests of an Employee are potentially at odds with the best interests of CAFE ON THE HILLTOP. All Employees are required to act in good faith towards CAFE ON THE HILLTOP. Employees need to be aware of the potential for a conflict of interest to arise and should always act in the best interests of CAFE ON THE HILLTOP. As individuals, Employees may have private interests that from time to time conflict, or appear to conflict, with their employment with CAFE ON THE HILLTOP. Employees should aim to avoid being put in a situation where there may be a conflict between the interests of CAFE ON THE HILLTOP and their own personal or professional interests, or those of relatives or friends. Where such a conflict occurs (or is perceived to occur), the interests of CAFE ON THE HILLTOP will be balanced against the interests of the staff member and, unless exceptional circumstances exist, resolved in favour of CAFE ON THE HILLTOP. It is impossible to define all potential areas of conflict of interest. If an Employee is in doubt if a conflict exists, they should raise the matter with their Manager.

21.2 Procedure

Employees must:

- Declare any potential, actual, or perceived conflicts of interest that exist on becoming employed by CAFE ON THE HILLTOP to Management.
- Declare any potential, actual, or perceived conflicts of interest that arise or are likely to arise during employment by CAFE ON THE HILLTOP to Management.
- Avoid being placed in a situation where there is potential, actual, or perceived conflict of interest if possible.

If an Employee declares such an interest, CAFE ON THE HILLTOP will review the potential areas of conflict with the Employee and mutually agree on practical arrangements to resolve the situation.

Employees must disclose any other employment to their Manager that might cause a conflict of interest with CAFE ON THE HILLTOP. Where there are external involvements that do not represent a conflict of interest, these must not affect performance or attendance whilst working at CAFE ON THE HILLTOP. If such involvement does affect performance or attendance it will be considered a conflict of interest.

Employees must not set up or engage in private business or undertake other employment in direct or indirect competition with CAFE ON THE HILLTOP using knowledge and/or materials gained during the course of employment with CAFE ON THE HILLTOP.

Engaging in other business interests during work hours will result in strong performance improvement action. Failure to declare a potential, actual or perceived conflict of interest or to take remedial action agreed with CAFE ON THE HILLTOP, in a timely manner, may result in performance improvement proceedings including dismissal.

22 Intellectual Property and Security

All intellectual property developed by Employees during their employment with CAFE ON THE HILLTOP, including discoveries or inventions made in the performance of their duties related in any way to the business of CAFE ON THE HILLTOP, will remain the property of CAFE ON THE HILLTOP.

Employees may be given access to confidential information, data, business property, keys to premises, or any other business-related property/information in the performance of their duties. This must be protected and used only in the interests of CAFE ON THE HILLTOP. Employees must not:

- Disclose or use any part of any confidential information outside of the performance of their duties and in the interests of CAFE ON THE HILLTOP.
- Authorise or be involved in the improper use or disclosure of confidential information.
- During or after their employment without the Employer's written consent, other than as required by law.

Confidential information, includes any information in any form relating to CAFE ON THE HILLTOP and related bodies, clients, or businesses which is not in the public domain.

Employees must act in good faith towards CAFE ON THE HILLTOP and must prevent, or if impractical, report the unauthorised disclosure of any confidential information. Failure to comply

with this policy may result in performance improvement proceedings including dismissal and CAFE ON THE HILLTOP may also pursue monetary damages or other remedies

23 Termination of Employment

23.1 Termination by the Company

Subject to Clause 10.3, CAFE ON THE HILLTOP may terminate the employment by giving you one month's notice in writing.

23.2 Resignation

If you resign, you must give one month's notice in writing. If you decline to serve part or all of that notice period without agreement of the Company, you will forfeit your right to be paid for that period of notice which you refused to serve (and Clause 4 will apply).

23.3 Summary Termination

The Company may terminate your employment immediately by giving written notice and without being required to provide any compensation or payment in lieu of notice if you:

a) Engage in serious or gross misconduct.
b) Breach a fundamental condition and/or commit a fundamental breach of the conditions of your employment.
c) Commit an act of fraud or dishonesty.
d) Engage in any conduct which, in the reasonable opinion of the Company, might tend to injure the reputation or business of the Company.
e) Fail or refuse to comply with any lawful direction given to you by the Company through its authorised representative.
f) Fail to keep food costs below 34% for three consecutive months.

23.4 During the notice period

If either the Company or you give notice of termination under this agreement, the Company may either:

a) Pay you an amount of base salary in lieu of part or all that period not served by you.
b) Require you to serve part or all that period without attending work and/or performing duties.

23.5 Acts Following Termination

Upon the termination of your employment you must immediately repay all outstanding debts and loans to the Company and return to the Company any of the following items in your possession:

a) Any document, whether in computerised form or otherwise, relating to any matter within the scope of the business of the Company, or confidential information pertaining to any other aspect of your employment.
b) All keys and passes belonging to the Company.
c) All Software and associated materials belonging to or licensed to the Company.
d) All other property belonging to the Company.

You also must provide the Company with a letter certifying that all such items have been returned.

24 Other Business Interests

During your employment you will not:

a) Undertake or carry on, or be employed by, or be directly or indirectly concerned or interested in (other than merely by holding up to 5% of shares issued in a Public Company) any business other than the Company's business.
b) Have any association or interest outside the Company that is incompatible and/or inconsistent with the Company's interests.

25. Restraint

25.1 Restraint

You will not during the **Restraint Period** in the **Restraint Area**, by any means whatsoever directly or indirectly:

a) Attempt to persuade a client to cease dealing with or to reduce the dealings which that client has customarily had or contemplated having with the Company.
b) Attempt to persuade a supplier to cease dealing with or to reduce the dealings that the supplier has customarily had or contemplated having with the Company.
c) Attempt to persuade any Employee or Contractor of the Company with whose skills and abilities you have become familiar during your employment to cease providing services to the Company and/or to provide services to you or another person.
d) Carry on, advise, provide services to or be engaged, concerned or interested in or associated with, or otherwise involved in any business activity that is competitive with any business carried on by the Company.
e) Agree by joining and signing this Contract with CAFE ON THE HILLTOP not to work with the Roger Lakkis Group, their Affiliates, Trusts or related Companies for a period of three

years after leaving the CAFE ON THE HILLTOP, nor discuss CAFE ON THE HILLTOP operations to our Competitors or share our Trade Secrets.

25.2 Interpretation

Each of the covenants contained in this Clause resulting from each Restraint Period and each Restraint Area constitutes and is to be construed and will have effect as a separate, distinct, severable, and independent provision from the other covenants (but cumulative in overall effect) and Clause 24.3 will apply.

Restraint Period means the following period commencing immediately after termination of your employment:

a) 12 months, or if that is unreasonable;
b) 9 months, or if that is unreasonable;
c) 6 months, or if that is unreasonable;
d) 3 months.

Restraint Area means the following geographical regions:

a) Victoria.
b) NSW.
c) ACT.
d) Tasmania.

Supplier means any person who supplies services to the Company and with whom in the course of the last 12 months of your employment both you and the Company have had dealings.

25.3 Acknowledgment

You acknowledge and agree that, without prejudice to any other remedy that the Company may have, the Company will be entitled to the remedy of injunction and other equitable relief to prevent or cure any breach or threatened breach of this Clause.

26. Environmental Practices

26.1 Policy

CAFE ON THE HILLTOP will comply with all Local, State, and Federal Laws and Regulations on:

- Disposing of hazardous waste (including EPA's list of prescribed industrial waste), trade waste (i.e. waste added to the sewer) and waste water.

- Safe handling, storage, and transport of hazardous waste and dangerous goods.
- Noise.
- Land use.
- Air pollution and carbon emissions.

CAFE ON THE HILLTOP is further committed to:

- Supporting local producers.
- The promotion and use of free trade goods.
- Recycling and the use of recycled products wherever practical.
- Minimising water usage.
- Minimising waste.
- Use of environmentally sensitive products.
- Production efficiencies that minimise our carbon footprint.

26.2 Procedure

CAFE ON THE HILLTOP will set targets each year to increase energy and water efficiency and seek opportunities for reducing and recycling waste. To do this, we will:

General

- Investigate ways to reduce consumption or recycle waste.
- Give preference to maintenance and other contractors using green products.

Energy

- Buy electrical and lighting systems rated as energy efficient.

Water

- Buy appliances rated as water efficient.
- Buy plumbing devices (e.g. taps) with built-in flow restrictors for the kitchen and washing up areas, and alternatively, add these to existing fittings.

Waste

- Look for opportunities to exchange waste on the waste exchange database website: www.wasteexchange.net.au